

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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David Andre,	: Index Number:
	: Date Purchased:
	: Date Filed:
Plaintiff,	: SUMMONS
-against-	:
City of New York, New York City Police Department,	:
Police Officer Steven Baio, Shield 18830 of the 32 Precinct	:
and New York City Police Officers John Doe,	:
	: Plaintiff's residence is:
	: 4155 Wickham Avenue
	: Bronx, NY 10466
Defendants,	:
-----X	

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in New York County.

Dated: January 27, 2020
Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Steven Baio, Shield 18830 of the 32 Precinct

New York City Police Officers John Doe,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
David Andre, :

Plaintiffs :

VERIFIED COMPLAINT

-against- :

City of New York, New York City Police Department, :
Police Officer Steven Baio, Shield 18830 of the 32 Precinct :
and New York City Police Officers John Doe, :

Defendants :

-----X
Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff David Andre (hereinafter referred to as "ANDRE") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Steven Baio, Shield 18830 of the 32 Precinct, (hereinafter referred to as "BAIO") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as "DOES") were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or before February 27, 2019 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. That on or about June 27, 2019 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about December 30, 2018 at approximately 11:00 PM in the vicinity of 144 Street and Seventh Avenue, New York, NY, Plaintiff was sitting in his car, parked in a legal parking spot, when BAIO and DOES used their police car to block Plaintiff's car from exiting the spot.

9. That after BAIO and DOES ordered Plaintiff to exit his car and when he did he was arrested.

10. That at no time had Plaintiff committed any parking violations.

11. That at no time had Plaintiff committed any violations of the New York State Vehicle and Traffic Rules or Regulations.

12. That at no time did Plaintiff engage in any illegal or unlawful behavior.

13. That at no time did Plaintiff obstruct the governmental administration of any police officer.

14. That after Plaintiff was arrested, he was transported to the 32 precinct.
15. That while Plaintiff was held in the 32 precinct he was confined to a cell with numerous other male prisoners.
16. That while Plaintiff was held in the 32 precinct he was strip searched and that nothing of an unlawful nature was recovered.
17. That after being held in the 32 precinct for several hours, he was transported to New York County Criminal Court, located at 100 Centre Street, New York, NY.
18. That while Plaintiff was held in New York County Central Booking, he was confined to a cell with numerous other male prisoners.
19. That on or about December 31, 2018 Plaintiff was released from custody after the Office of the New York County District Attorney declined to prosecute the case against Plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

20. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 19, as if more fully stated herein at length.
21. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
22. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
23. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.
24. That as a result of the actions by Defendants, Plaintiff was traumatized and fears her physical safety when she sees and encounters members of the New York City Police Department from that day and onward.
25. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.
26. That as a result of the Defendants' actions, Plaintiff missed several days form work.
27. That as a result of the Defendants' actions Plaintiff sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.
29. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth

Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

30. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

36. That during the pendency of the criminal case against Plaintiff, BAIO and DOES persisted in their false claim that Plaintiff obstructed governmental administration when they knew he had not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. At all times pertinent hereto, BAIO and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

39. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that BAIO and DOES committed within the scope of her employment.

40. That the City of New York and New York City Police Department knew that BAIO falsely arrested Kenneth Cunningham on April 19, 2016, the subject of a lawsuit under index 17cv5124 in the Southern District of New York. Despite such, the City of New York and New York City Police Department continued to employ him.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. The City of New York and New York City Police Department's failure to provide adequate training and supervision to BAIO and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42 as if more fully stated herein at length.

44. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

45. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

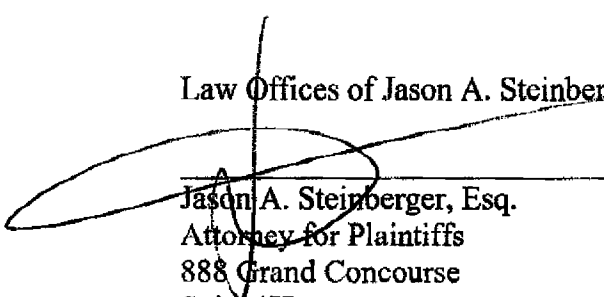
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

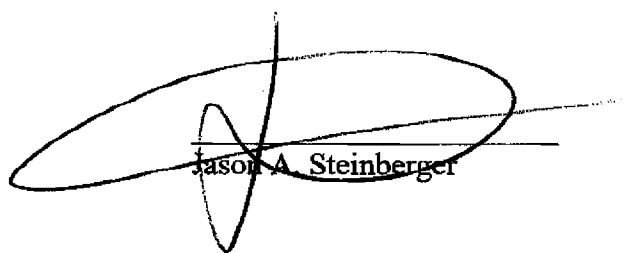


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: January 27, 2020



Jason A. Steinberger

Index Number:**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

DAVID ANDRE,

Plaintiffs

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER STEVEN BAIO, SHIELD 18830 OF THE 32 PRECINCT AND NEW YORK
CITY POLICE OFFICERS JOHN DOE,****Defendant.**

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC

888 Grand Concourse

Suite 1H

Bronx, NY 10451

To:

Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for**PLEASE TAKE NOTICE**☐

that the within is a (certified) true copy of

☐

entered in the office of the clerk of the within named Court on

NOTICE**OF ENTRY**

that an Order of which the within is a true copy will be presented for settlement to the Hon.

NOTICE OF

once of the Judges of the within named Court,

SETTLEMENT

at

on

200

, at

m.

Dated:

JASON A. STEINBERGER, ESQ.**888 Grand Concourse, Suite 1H****Bronx, NY 10451**

To:

Attorney(s) for